

Opinion of SOTOMAYOR, J.

by allowing some redress for injuries” and “provides instruction and guidance to federal law enforcement officers going forward.” 582 U.S., at 134. Accordingly, the Court explained, there are “powerful reasons to retain [*Bivens*]” in the “common and recurrent sphere of law enforcement.” *Ibid.* The Court further recognized that “individual instances of discrimination or law enforcement overreach” are, by their nature, “difficult to address except by way of damages actions after the fact.” *Id.*, at 144.

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Ziglar and *Hernández* control here. Applying the two-step framework set forth in those cases, the Court of Appeals’ determination that Boule’s Fourth Amendment claim is cognizable under *Bivens* should be affirmed for two independent reasons. First, Boule’s claim does not present a new context. Second, even if it did, no special factors would counsel hesitation.

Boule’s Fourth Amendment claim does not arise in a new context. *Bivens* itself involved a U.S. citizen bringing a Fourth Amendment claim against individual, rank-and-file federal law enforcement officers who allegedly violated his constitutional rights within the United States by entering his property without a warrant and using excessive force. Those are precisely the facts of Boule’s complaint.

The only arguably salient difference in “context” between this case and *Bivens* is that the defendants in *Bivens* were employed at the time by the (now-defunct) Federal Bureau of Narcotics, while Agent Egbert was employed by CBP. As discussed, however, this Court’s precedent instructs that some differences are too “trivial . . . to create a new *Bivens* context.” *Ziglar*, 582 U.S., at 149.² That it was a CBP

² Egbert argues in passing that the fact that he was operating under a “‘statutory . . . mandate’ not invoked in prior cases,” standing alone, “dooms [Boule’s] no-new-context argument.” Reply Brief 19 (quoting *Ziglar*, 582 U.S., at 140). Not so. Egbert fails to show that any differ-